

Amendment No. 1 to SB1692

Bailey
Signature of Sponsor

AMEND Senate Bill No. 1692

House Bill No. 1677*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 58, is amended by adding the following as a new chapter:

58-10-101. Short title.

This chapter is known and may be cited as the "Military Families Licensing Recognition Act."

58-10-102. Chapter definitions.

As used in this chapter:

(1) "Covered license" means a professional or occupational license that, with respect to a scope of practice:

(A) Is in good standing with the licensing authority that issued the license;

(B) Has not been revoked or had discipline imposed by any state;

(C) Does not have an investigation relating to unprofessional conduct pending in any state relating to the license; and

(D) Has not been voluntarily surrendered while under investigation for unprofessional conduct in any state;

(2) "License" means any license, certificate, or other evidence of qualification that an individual is required to obtain before the individual may engage in, or represent oneself to be a member of, a particular profession;

(3) "Licensing authority" means any state board, commission, department, or agency that is:

(A) Established in the state for the primary purpose of regulating the entry of persons into, or the conduct of persons within, a particular profession; and

(B) Authorized to issue licenses;

(4) "Military orders" has the same meaning as defined in 50 U.S.C. § 3955;

(5) "Scope of practice" means the defined parameters of various duties or services that may be provided by an individual under a license; and

(6) "Service member" has the same meaning as servicemember, as defined in 50 U.S.C. § 3911.

58-10-103. Recognition.

Notwithstanding another law, a licensing authority in this state shall recognize a covered license issued by a licensing authority of another state that is held by a service member or spouse of a service member who relocates to this state pursuant to military orders received by the service member or who relocates to a state contiguous with this state and desires to work within this state, upon approval of the service member's or spouse's application for license recognition in accordance with § 58-10-104.

58-10-104. Application for license recognition.

(a) A service member or service member's spouse who holds a covered license may apply for recognition of the service member's or spouse's covered license in this state by submitting an application to the appropriate licensing authority that includes:

(1) Proof of military orders or other official documentation of the service member's military orders, including an electronic communication, memorandum, or similar official record;

(2) If the applicant is the spouse of a service member, a copy of the marriage certificate or a copy of the applicant's uniformed services identification (USID) card;

(3) A notarized affidavit affirming, under penalty of perjury, that:

(A) The applicant is the person described and identified in the application;

(B) All statements made in the application are true, correct, and complete;

(C) The applicant has read and understands the requirements to receive a license and the scope of practice of such license in this state;

(D) The applicant certifies that the applicant meets and agrees to comply with the requirements of subdivision (a)(3)(C); and

(E) The applicant is in good standing in all states in which the applicant holds or has held a license.

(b) A licensing authority that receives an application for recognition of a covered license may require an applicant to submit to a background check.

58-10-105. State laws and jurisdiction.

A person whose covered license is recognized pursuant to this chapter is subject to the laws regulating the profession in this state and the jurisdiction of the applicable board in this state.

58-10-106. Limitations.

This chapter does not:

(1) Prohibit a person from applying for a professional license under another law of this state;

(2) Prevent this state from entering into a licensing compact or reciprocity agreement with another state or foreign country;

- (3) Prevent this state from recognizing occupational credentials issued by a private certification organization, international organization, or other entity;
- (4) Apply to an occupation regulated by the state supreme court;
- (5) Apply to an occupational license under title 38; or
- (6) Require a private certification organization to grant or deny private certification to any individual.

58-10-107. Notice.

(a) Except as provided in subsection (b), each licensing authority shall display prominently the following on its website, applications, and related communications:

Pursuant to the Military Families Licensing Recognition Act, active and retired military service members and their spouses may qualify for in-state recognition of a professional license issued in another state.

(b) Subsection (a) does not apply to the license applications of a licensing authority under title 48.

58-10-108. Validity of existing licensure pathways - Use of shortest licensure pathway.

(a) This chapter does not supersede, replace, or invalidate a process, procedure, rule, or policy that a licensing authority has previously adopted to recognize, endorse, expedite, or otherwise grant licensure or license recognition to service members or their spouses. A licensing authority may continue to utilize or administer such existing process.

(b) In determining whether to utilize the process provided under this chapter or an existing process, procedure, rule, or policy, a licensing authority must utilize the process, procedure, rule, or policy that will allow the service member or the spouse of the service member to obtain the license within the shortest amount of time. This chapter must not be construed to prohibit or otherwise prevent a service member or the spouse of a service member from utilizing the process, procedure, rule, or policy that will

allow a service member or the spouse of a service member to obtain a license in the shortest amount of time.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. For the purpose of rule promulgation, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.